

TENTATIVE RULING(S) FOR July 22, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2508314

RED ROCK TRANSPORTATION, INC. v. SPIREON, INC., et al.

TENTATIVE RULING

On March 25, 2025, plaintiff Red Rock Transportation, Inc. (Plaintiff) initiated the instant action against defendants Spireon, Inc. (Defendant) and Does 1-100. The operative Second Amended Complaint (SAC), filed November 12, 2025, alleges four causes of action for: 1) breach of contract; 2) breach of implied covenant of good faith and fair dealing; 3) common count – mistaken receipt and 4) common count – money had and received.

Plaintiff alleges on May 22, 2015, Defendant leased electronic tracking devices (Equipment or Devices) to Plaintiff for its commercial truck fleet and agreed to provide support services for the Equipment in exchange for a monthly fee. Defendant provided the Equipment in batches pursuant to Lease Option Order Forms submitted by Plaintiff between May 22, 2015, and April 2019. Each Lease Option Order continued for three

years subject to renewal. Around July 20, 2021, Plaintiff notified Defendant it was not renewing any Lease Option Orders and was discontinuing the support services; each Lease Option Order had a different termination date spanning September 1, 2021, to April 1, 2022. After each individual Lease Option Order was terminated, Defendant continued to bill Plaintiff for monthly support service fees, which Plaintiff inadvertently continued to pay. Defendant accepted the erroneous payments and refused to issue refunds despite Plaintiff's request when it discovered the accounting error and overpayment in November 2023. The instant action ensued.

On February 23, 2026, Plaintiff filed the instant Motion for Leave to File Third Amended Complaint (Motion), supported by a declaration from Damian M. Moos (Moos). Defendant filed its Opposition to the Motion (Opposition) on May 14, 2026. Plaintiff filed its Reply on May 20, 2026.

The California Code of Civil Procedure section 473, subdivision (a)(1), provides, in pertinent part, as follows:

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect.... The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars....”

Leave to amend is within the court's sound discretion. (Code Civ. Proc., §473.) Since judicial policy favors resolution on the merits, courts liberally grant leave to amend. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is an error to refuse permission to amend, and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

The following must be included in a moving party's motion to amend a pleading: (1) a copy of the proposed amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments, (2) a statement of what allegations in the previous pleading are deleted or added (if any) and where, by page, paragraph, and line number, the deleted or additional allegations are located, and (3) a separate declaration specifying (a) the effect of the amendment, (b) why the amendment is necessary and proper, (c) when the facts discovered that give rise to the amended allegations, and (d) the reasons why the request for amendment was not made earlier. (California Rules of Court, Rule 3.1324(a)-(b).)

Plaintiff herein motions under section 473(a) of the Code of Civil Procedure for leave to file the proposed Third Amended Complaint (TAC) attached to the declaration of Moos. Plaintiff argues the interests of justice favors the proposed amendment as the addition of a cause of action for conversion is simply an alternative legal theory based on the same facts previously pled. Plaintiff argues that Defendant will not be prejudiced by the proposed amendment as no discovery has commenced and no trial date has been set in the instant proceedings.

In its Opposition, Defendant cites to *Holguin Fam. Ventures, LLC v. Cnty. of Ventura* (2024) 104 Cal. App. 5th 157, 179 for authority that leave to amend should be denied as the subject amendment is futile as a matter of law. Defendant argues the proposed conversion claim is barred under the economic loss rule, just like the previously dismissed fraud claim, as it seeks economic damages stemming from Defendant's alleged tortious breach of contract. Defendant argues the proposed TAC's conversion claim adds no new facts and as such, fails to allege any exception to the economic loss rule. Further, citing *Spates v. Dameron Hosp. Ass'n* (2003) 114 Cal. App. 4th 208, 222 and *Bush v. Lane* (1956) 139 Cal. App. 2d 376, 378, Defendant argues the proposed conversion claim also fails as a matter of law because it cannot allege wrongful possession of any amount invoiced and accepted or wrongful intent to interfere with Plaintiff's possessory rights.

Plaintiff replies maintaining that Plaintiff is entitled to plead alternative theories. Here, Plaintiff argues as it is disputed when the contracts between the parties were terminated, if the contracts were terminated, then the subject conversion claim is based on funds mistakenly paid when no contract was in effect. Plaintiff contends it pleads sufficient facts to support its claim for conversion including identifying \$335,324.09 in "Converted Funds," which were the monthly payments made between approximately September 2021 and October 27, 2023 after Defendant's contractual entitlement to payments had ended, Plaintiff's right to possession of those funds, Plaintiff's demand for return, and Defendant's refusal and continued retention. Further, Plaintiff cites to *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 20 for authority that an exception to the economic loss rule exists if defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract and defendant's conduct caused injury to persons or property. Plaintiff contends Defendant's retention of the funds violated a duty independent of the parties' contracts, namely the duty to return funds, upon demand, to the rightful owner and Defendant's misconduct caused injury to the Plaintiff. Finally, citing *Cerra v. Blackstone* (1985) 172 Cal. App. 3d 604, 609, Plaintiff argues wrongful possession is properly pled as possession initially obtained lawfully may become wrongful if the withholding party refuses to return the property to the party entitled to

possession after demand is made. As to Defendant's argument that wrongful intent is not alleged, Plaintiff cites to *Taylor v. Forte Hotels Int'l* (1991) 235 Cal. App. 3d 1119, 1124 for authority that wrongful intent is not an element of conversion and instead, the complaint merely needs to allege facts that support a showing that the act was knowingly or intentionally done.

The court intends to grant Plaintiff's Motion as judicial policy favors resolution of cases on their merits and such requests are liberally construed. (*Nestle v. Santa Monica, supra*, 6 Cal.3d at p. 939.) Defendant does not argue that the filing of the proposed TAC will prejudice it and prejudice is unlikely given the trial for this matter has not been set. Instead, Defendant's sole argument advanced in its Opposition is that the TAC pleads a conversion claim that fails as a matter of law. The court finds such arguments premature. (*Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048.) The elements of a conversion are the plaintiff's ownership or right to possession of the property at the time of the conversion, the defendant's conversion by a wrongful act or disposition of property rights, and damages. (*Spates v. Dameron Hospital Assn.* (2003) 114 Cal.App.4th 208, 220.) The proposed TAC pleads facts alleging Plaintiff is the owner of the disputed \$335,324.09, which was erroneously paid to Defendant and Defendant had no contractual, legal, or equitable right to receive or retain any portion of this sum as Plaintiff terminated the parties' contract on April 1, 2022. The TAC further pleads Defendant refused to return the disputed funds despite Plaintiff's demands. Based on the foregoing, the court finds the proposed pleading on its face states facts that are sufficient to constitute a cause of action. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.)

TENTATIVE RULING

Plaintiff's Motion for Leave to File and serve the Third Amended Complaint is granted and the TAC is to be filed within ten days of the court's order.

TENTATIVE RULING(S) FOR July 22, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2607013

JONATHAN GROYN CABALLERO v. MICHAEL AGRON

TENTATIVE RULING

On March 3, 2026, Plaintiff Jonathan Groyon Caballero filed a judicial form complaint against Defendant Michael Agron. Plaintiff alleges causes of action for motor vehicle and negligence related to a motor vehicle accident.

Now before the Court is Plaintiff's motion to compel Defendant's deposition. Plaintiff asserts that after proper service of a deposition notice, Defendant has refused to appear for his deposition and has not served any valid objections excusing his attendance. Instead, the only stated reason is defense counsel's unavailability until September 2026, which Plaintiff argues is not a proper objection.

The deposition notice was served May 11, 2026, setting the deposition for June 23, 2026. (Hong Decl. ¶ 4, Exh. 1.) Plaintiff asserts that on May 12, 2026, Defendant served an objection, stating the date had been unilaterally scheduled and defense counsel was unavailable. With respect to the meet and confer, Plaintiff's

counsel states a good faith effort was made over a two week period to obtain alternative dates, with offers of accommodation. Defense counsel refused to provide any dates of availability before September 2026. (Hong Decl. ¶¶ 6-12 and Exh. 3.) Plaintiff argues defense counsel's claimed unavailability does not justify a four month delay. Plaintiff seeks sanctions.

In opposition, Defendant asserts that he has provided dates, but due to scheduling constraints, is not available until September 2026. Defendant asserts that he has timely communicated availability and is willing to cooperate in scheduling the deposition at the earliest mutually convenient date. He argues that the fact the dates fall in September 2026, does not constitute noncompliance, but reflects scheduling realities.

Defendant also states the motion is premature and that the deposition is currently scheduled for September 7, 2026. Therefore, Defendant request the motion be denied. **No declaration is submitted by counsel in support of Defendant's contentions.**

Plaintiff replies that Defendant failed to provide dates and Defendant's only position is that defense counsel is not available until September 2026. Plaintiff again argues "unilaterally scheduled" is not a valid objection given the statute allows Plaintiff to set a deposition on statutory notice. (Code Civ. Proc., §§ 2025.210. 2025.270.) Plaintiff also argues that defense counsel does not produce any evidence in support of unavailability.

Code of Civil Procedure section 2025.450, subdivision (a), allows a party who served a valid deposition notice, not the subject of a valid objection, to move for an order to compel the deposition of the individual and production of documents when the individual fails to appear at the deposition and fails to provide the requested documents. Under section 2025.450, subdivision (b), the motion also must be accompanied by a meet and confer.

Sanctions shall be imposed against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the Court finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g).)

Defense counsel's unexplained general representation that counsel or his client will not be available to attend a deposition of the defendant over a roughly 3 to 4 month period does not constitute sufficient

justification for refusal to be present for a properly noticed deposition, especially in light of the fact that counsel has not submitted a sworn declaration supporting such a contention.

TENTATIVE RULING

The court grants Plaintiff's motion compelling the deposition with attendant production of documents without objections. The parties should be prepared to agree to a date for the deposition at the time of the hearing and the court will order the administration of the deposition and production of documents for a date specific. The court imposes monetary sanctions solely as against defense counsel (not defendant) for the sum of \$1,800.00 (4 hours X \$450).

TENTATIVE RULING(S) FOR July 22, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2205587

CHRISTOPHER TATUM v. G AND C SWAN, INC.

TENTATIVE RULING

Plaintiff Christopher Tatum contends he checked himself into a detox facility in Upland in May 2021 and, while there, was subjected to dependent adult abuse. Tatum then commenced suit in April 2022 against those operating the facility, namely, Defendants G and C Swan, Inc. and His House (though the latter is simply the DBA of the former). The operative first amended complaint (FAC) was then filed in December 2022.

The FAC indicates that at the time Tatum checked in, he had an undiagnosed perforated ulcer that rapidly deteriorated. The condition became so bad that Tatum was unable to care for himself. The need for medical care was also obvious and Defendants failed to take action despite Tatum's pleas. Ultimately, Tatum was admitted to the hospital for emergency surgery. Overall, the FAC contains claims for (1) general negligence, (2) dependent adult abuse, and (3) intentional infliction of emotional distress.

Motion to Quash

Through the course of discovery, and on May 13, 2026, Tatum served a subpoena upon the Department of Health Care Services (DHCS), seeking consumer complaints against His House over medical care, the quality of treatment, staff behavior, and safety or abuse of residents for any rehabilitation facility owned or operated by G and C Swan, Inc. in California from January 1, 2011 to the present.

A week later, His House served objections upon Tatum and DHCS, contending the subpoena is overbroad, vague, ambiguous, burdensome, oppressive, seeks irrelevant documents, and violates its and third parties' privacy rights. His House also demanded the withdrawal of the subpoena. After it was not withdrawn, His House filed the pending motion to quash, advancing the objections. The motion is also made on the grounds that the deposition officer identified in the subpoena, Tatum's counsel, is financially interested in the action, which is improper under Code of Civil Procedure section 2020.420. The motion is supported by a declaration from attorney Ida Farahmand, the subpoena, and the objections to the subpoena.

The motion is opposed by Tatum on the grounds that the subpoena seeks documents that will help establish there were similar complaints involving the same staff and His House failed to take reasonable steps to prevent similar harm. The opposition is supported by a declaration from attorney Erin Powers.

Analysis

Code of Civ. Proc. section 1987.1, subdivision (a) states:

If a subpoena requires the attendance of a witness or the production of books, documents ... at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personal identifying information is sought may bring a motion to quash. (Code Civ. Proc., §1987.1, subd. (b).) If a party seeks to subpoena personal records (e.g., medical records), then the party must serve on the consumer a notice along with the subpoena. (Code

Civ. Proc., §1985.3, subd.'s (b) and (e).) The consumer whose records are sought may move to quash or modify the subpoena under section 1987.1. (Code Civ. Proc., § 1985.3, subd. (g).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code of Civ. Proc., §1985.3, subd. (g).)

A “motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled.” (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-6 at § 8:535 [citing Cal. Rules Ct., rule 3.1345(a)(5)].) The failure to comply with the separate statement requirement is grounds for denial of the motion. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, rehearing denied, review denied.)

Defendant's Motion

In this case, the subpoena called for production of documents on June 4, 2026 and the motion was filed and served on June 1. The motion was therefore not filed and served five days before the production date. In any event, the five-day time limit for service is not jurisdictional and the Court can grant a motion to quash that is served even after the date set for production. (*Slagle v. Sup.Ct. (Maryon)* (1989) 211 Cal.App.3d 1309, 1313.) However, the motion is also not supported by a separate statement. There is also no indication His House attempted to meet and confer, beyond serving the objections and demanding that the subpoena be withdrawn. While there is no express meet and confer requirement in section 1987.1, the statute still requires that the motion must be “reasonably made.”

In any event, and as for the substance of the objections, His House contends that the subpoena is vague and ambiguous, but such objections are generally designed to protect a witness during oral examination. (See *W. Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 421.) The subpoena is otherwise straightforward in seeking all complaints about medical care, staff behavior, safety, or abuse against His House.

While His House also objects on burden grounds, such an objection generally must be supported by evidence, such as a declaration outlining the quantum of work required to respond to the discovery. (*W. Pico Furniture Co., supra*, 56 Cal.2d at p. 421.) No such evidence was submitted in this case. Moreover, there is authority suggesting that His House lacks standing to assert such an objection since it is not the deponent with the obligation to respond to the subpoena. (See *Doe v. Kaiser Found. Health Plan, Inc.*, No.

23-cv-02865-EMC (*PHK*), 2023 WL 8714880 at *3 (N.D. Cal. Dec. 17, 2023) [defendant lacked standing to assert relevancy, overbreadth and burden objections to a subpoena, “unless the party claim[ed] a personal right or privilege with respect to the documents requested in the subpoena”].)

As for the relevancy objection, the first and most basic limitation on the scope of discovery is the information sought must be relevant to the “subject matter” of the pending action or to the determination of a motion in that action. (Code Civ. Proc., § 2017.010.) The phrase “subject matter” does not lend itself to precise definition. However, it is broader than relevancy to the issues (which determines admissibility of evidence at trial). (*Bridgestone/Firestone, Inc. v. Sup.Ct. (Rios)* (1992) 7 Cal.App.4th 1384, 1392.) For discovery purposes, information should be regarded as “relevant to the subject matter” if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*Gonzalez v. Sup.Ct. (City of San Fernando)* (1995) 33 Cal.App.4th 1539, 1546 (citing text); *Lipton v. Sup.Ct. (Lawyers’ Mut. Ins. Co.)* (1996) 48 Cal.App.4th 1599, 1611.)

Here, the FAC suggests that His House was negligent in the selection, hiring and “appointment” of each and every other Defendant, which would include the Doe defendants. (FAC at ¶ 9.) The FAC further avers that His House had a duty to ensure that its staff was adequately trained and knowledgeable. (FAC at ¶ 23.) Thus, prior complaints about staff care, behavior, abuse or safety concerns (as is requested by the subpoena) could arguably establish that His House staff was inadequately trained or negligently hired or selected for their respective job tasks..

However, His House notes that the request seeking records from January 1, 2011 to the present, is not limited to the facility where Tatum was located or to the employees that oversaw his care, nor is the subpoena limited to the type of misconduct alleged in this case. That argument is well taken; there is a lack of connection between the breadth of the subpoena and the allegations. The subpoena should be limited to complaints against those individuals providing care or supervision to Tatum. As a secondary category of documents, Tatum could seek complaints made about the failure to provide medical care or intervene at the same facility he attended (or some similarly worded request that ties the document requests to the misconduct Tatum experienced). If the subpoena were reworded in this manner, the temporal scope would not necessarily be an issue.

As for the privacy claim, under the California Constitution individuals have a right to privacy that protects one’s information. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) However, the right to privacy is not absolute. For instance, in the personal injury context a party waives any privacy interest as to the

claims asserted and to any conditions that could be an alternative source for the alleged injury. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840, 842; *Britt v. Superior Court* (1978) 20 Cal.3d 844, 863-64.) Even so, any waiver of the right to privacy only applies “to matters embraced by the action” and “even when a plaintiff files an action that places his or her medical records at issue, waivers of constitutional rights are narrowly construed and not lightly found.” (*Bearman v. Superior Court* (2004) 117 Cal.App.4th 463, 473.)

In this case, if the subpoena were limited as outlined above, Tatum’s need for the discovery would outweigh the privacy interests of those involved in the complaints, especially since the subpoena would seek documents directly related to those involved in the alleged misconduct at issue in this case or working at the same facility. Tatum also concedes that personally identifying information about patients can be redacted. Additionally, the court observes that as to privacy or confidentiality concerns, the court entered a Stipulated Protective Order on April 28, 2025, which expressly protects the privacy rights of third parties as well as the litigants in this case.

Finally, His House also contends that the subpoena violates Code of Civil Procedure section 2020.420, which provides “[t]he officer for a deposition seeking discovery only of business records for copying under this article shall be a professional photocopier registered under Chapter 20 (commencing with Section 22450) of Division 8 of the Business and Professions Code, or a person exempted from the registration requirements of that chapter under Section 22451 of the Business and Professions Code. This deposition officer shall not be financially interested in the action, or a relative or employee of any attorney of the parties. Any objection to the qualifications of the deposition officer is waived unless made before the date of production or as soon thereafter as the ground for that objection becomes known or could be discovered by reasonable diligence.”

Code of Civil Procedure Section 22451 identifies members of the State Bar or his or her employees, agents, or independent contractors as being exempt (or rather the statute states “this chapter” does not apply to such licensed attorneys). Thus, “[t]he subpoenaing attorney may either engage a registered professional photocopier” or he or she “may assume responsibility for the copying.” (Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-6 at § 8:547 [citing Code Civ. Proc., § 2020.420 and Evid. Code, § 1560, subd. (e)].)

As for the “shall not be financially interest in the action” language, it appears that language must be in reference to something other than an attorney’s mere contingency fee interest in the lawsuit (which has not been shown to even exist in this case, i.e., His House merely assumes counsel has taken the case on a

contingency or is not acting pro bono). Otherwise, counsel could not, as the practice guide above suggests, “assume responsibility for the copying.”

TENTATIVE RULING

The court finds that the subpoena is overbroad as to scope and time. The motion to quash is granted without prejudice to the issuance of a more particularized subpoena. The court provides the following advisory opinion in the event there is another attempt to subpoena records from the DHCS in this matter.

The subpoena should be limited to:

1. Staff members who were permanently or temporarily located at the same facility as Tatum and who were directly responsible for the provision of care to Tatum while at the subject facility.
2. Staff members coming into contact with Tatum while at the subject facility.
3. Complaints involving said staff members at the subject facility refusing a client/residence's request for referral or transport to an outside medical facility for treatment or evaluation.
4. Complaints involving said staff members at the subject facility impeding a client/residence from seeking medical treatment or evaluation outside the facility.
5. Complaints involving said staff members ridiculing, demeaning or abusing a client/residence at the subject facility where the plaintiff was located.
6. The subpoena should have the same language regarding redaction of client/resident or patient personal information as contained in the present subpoena.
7. A prospective subpoena should be limited to the period of five years preceding May 2021 through the present.